THE EVOLUTION OF PEER EVALUATION IN MARITIME SAFETY OVERSIGHT: LESSONS FROM IMSAS AND IAF MLA STRUCTURES

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ABSTRACT

Effective regulatory oversight in international shipping is essential for ensuring safety, environmental protection, and fair competition. The International Maritime Organization's (IMO) Member State Audit Scheme (IMSAS) and the International Accreditation Forum's (IAF) Multilateral Recognition Arrangement (MLA) both represent global efforts to enforce uniform compliance through peer evaluation mechanisms. Despite similarities, these frameworks exhibit key differences in structure, transparency, impartiality, and outcome monitoring. This paper critically compares IMSAS and the IAF MLA peer evaluation systems, highlighting best practices from the IAF structure that could strengthen maritime audit governance. The findings propose actionable reforms to IMSAS aimed at achieving greater consistency, credibility, and global trust in maritime regulatory enforcement.

INTRODUCTION

The global maritime industry depends on the consistent implementation of regulatory frameworks to maintain safety, protect the marine environment, and ensure fair international trade. Recognizing the challenges inherent in state-led enforcement, the IMO introduced the Member State Audit Scheme (IMSAS) to monitor Member States' fulfillment of maritime obligations.

Similarly, the International Accreditation Forum (IAF) developed the Multilateral Recognition Arrangement (MLA) to promote mutual recognition of accredited certificates through rigorous peer evaluations of accreditation bodies worldwide.

While IMSAS and the IAF MLA share the objective of promoting compliance through peer evaluation, their methodologies, transparency, and enforcement mechanisms differ significantly. This paper explores these differences and identifies lessons that IMSAS can adopt from the IAF peer evaluation model.

LITERATURE REVIEW

Development of IMSAS

IMSAS was established to address concerns over the inconsistent implementation of IMO conventions. Initially voluntary, the scheme became mandatory for all IMO Member States in 2016. IMSAS audits assess how effectively a Member State carries out its flag, port, and coastal State responsibilities under IMO instruments. Conducted through a peer-review mechanism, audit teams composed of experts from other Member States create a collaborative environment aimed at improving compliance through mutual assistance rather than punitive measures (Knudsen, 2019).

The IAF Multilateral Recognition Arrangement (MLA)

The IAF MLA employs a peer-based system where accreditation bodies are evaluated against ISO/IEC 17011 to ensure operational competence and consistency. Evaluations are rigorous and standardized, involving scheduled re-assessments, corrective action plans, and surveillance. The MLA facilitates global trust by ensuring that accredited certificates are recognized internationally, supporting harmonized trade, risk reduction, and consumer protection (Casadevall & Sagarra, 2020).

Peer Evaluation: Common Principles

Both IMSAS and the IAF MLA share core objectives:

- Ensuring consistent implementation of standards across member bodies.
- Facilitating mutual recognition and trust.
- Improving governance quality through systematic audits (Bloor et al., 2006).

Nevertheless, significant differences exist in rigor, independence, transparency, and enforcement practices (Baum & Rowley, 2018).

METHODOLOGY

This study employs a comparative documentary analysis approach. Official documents from the IMO and IAF, including IMO Resolutions A.1067(28) and A.1070(28), IAF PL5, IAF MD1, and ISO/IEC 17011, were reviewed. Insights from maritime administration experts and findings from prior Delphi studies were incorporated to validate identified gaps and recommendations.

COMPARATIVE ANALYSIS

Auditor Selection and Competence

Within IMSAS, auditors are nominated by Member States, with basic competence criteria established. However, there is no universally standardized training or certification. In contrast, the IAF MLA requires auditors to undergo formal qualification processes, including competency assessments aligned with ISO/IEC 17011. Auditor impartiality, conflict-of-interest management, and continuous professional development are mandatory components.

Recommendation for IMSAS: It is advisable to introduce certified training programs and formal qualification standards for maritime auditors, drawing on ISO/IEC 17024 principles to enhance competency and standardization.

Audit Planning and Execution

IMSAS audit cycles and scheduling are coordinated by the IMO Secretariat but are sometimes influenced by political considerations. Conversely, the IAF MLA follows a risk-based scheduling approach, allowing for unannounced evaluations when necessary.

Recommendation for IMSAS: Adoption of a risk-based approach to audit scheduling, considering factors such as fleet size, incident history, and administrative changes, would enhance objectivity and effectiveness.

Follow-up and Corrective Actions

Under IMSAS, corrective actions are largely voluntary, with follow-up reporting encouraged but not strictly enforced. The IAF MLA, however, mandates corrective action plans, requiring timely closure of nonconformities with evidence-based verification.

Recommendation for IMSAS: Mandatory corrective action plans, coupled with strict timelines and independent verification, should be implemented to reinforce accountability.

Confidentiality and Transparency

IMSAS maintains the confidentiality of audit findings unless Member States consent to publication. By contrast, the IAF MLA shares peer evaluation results among signatories and often publishes executive summaries to foster transparency.

Recommendation for IMSAS: A model allowing partial disclosure—for instance, publishing executive summaries while safeguarding sensitive details—could enhance public trust without compromising state sovereignty.

Structural Independence

Audit oversight in IMSAS remains embedded within the IMO Secretariat and Member States, raising concerns about impartiality. The IAF MLA addresses such risks through structured independence and neutral dispute resolution panels.

Recommendation for IMSAS: Establishing an independent oversight body—similar to the IAF MLA Management Committee—would STRENGTHEN audit governance and impartiality.

Recommendations

Drawing lessons from the IAF MLA framework, IMSAS should consider the following reforms:

- Introduce standardized auditor training, qualification, and periodic recertification.
- Implement risk-based audit scheduling informed by objective risk indicators.
- Enforce mandatory corrective action plans with defined timelines and independent verifications.
- Publish non-sensitive audit summaries to promote transparency and build stakeholder confidence.
- Establish an independent maritime oversight board to govern audit processes and resolve disputes impartially.

CONCLUSIONS

IMSAS has significantly contributed to enhancing Member States' compliance with IMO conventions. However, comparison with the more mature and rigorous IAF MLA system

reveals opportunities for substantial improvements. By adopting best practices such as standardized auditor qualifications, mandatory corrective actions, risk-based audit scheduling, enhanced transparency, and independent oversight, IMSAS could enhance audit consistency, credibility, and global trust. Strengthening the robustness of maritime audits is critical to maintaining a safe, secure, and sustainable international shipping environment amid evolving challenges related to environmental protection, cybersecurity, and complex global supply chains.

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